

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ZIMMIAN TABB,

Plaintiff,

- against -

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
LATASHA CARTER and POLICE OFFICERS
"JOHN DOE #1-5,

Defendants.

Index No.:

Date Purchased:

Plaintiff designates
Bronx County as the
place of trial

Basis of venue is

Locus of Occurrence

SUMMONSPlaintiff resides at
1576 Taylor Avenue, #4J
Bronx, NY 10460

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Defendant's AddressCITY OF NEW YORK
100 Church Street
New York, New York 10007NEW YORK CITY POLICE
DEPARTMENT
1 Police Plaza
New York, New York 10001POLICE OFFICER LATASHA CARTER
1 Police Plaza
New York, New York 10001**Plaintiff's attorneys:**LAW OFFICE OF PAMELA S. ROTH, ESQ. P.C.
2747 Coney Island Avenue
Brooklyn, New York 11235
Telephone: (888) 466-4884Dated: Brooklyn, New York
August 23, 2019

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

Index No.:

ZIMMIAN TABB,

VERIFIED COMPLAINT

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
LATASHA CARTER and POLICE OFFICERS
"JOHN DOE #1-5,

Defendants,

-----X

Plaintiff, by his attorneys, LAW OFFICES OF PAMELA S. ROTH, ESQ. P.C.,
complaining of the defendants herein, upon information and belief, respectfully shows to this
Court, and alleges as follows:

INTRODUCTORY STATEMENT

1. The plaintiff, ZIMMIAN TABB, brings this action under 42 U.S.C. Sec. 1983 and related state laws seeking compensatory and punitive damages and attorney's fees under 42 U.S.C. Sec. 1988 for the defendants' violation of his rights afforded by the United States and New York Constitutions and under the laws of the State of New York.

JURISDICTION

2. The Court has jurisdiction over plaintiff's claims under 42 U.S.C. Sec. 1983 pursuant to 28 U.S.C. Sec. 1331 and Sec. 1342(3).

3. The Court has supplemental jurisdiction over plaintiff's state law claims pursuant to 28 U.S.C. Sec. 1367.

4. Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER LATASHA CARTER and POLICE OFFICERS "JOHN DOE #1-5, Police Officers as yet unidentified, being employees of the New York City Police Department, respectively, violated plaintiff's civil rights without just and probable cause, causing him emotional and economic loss.

**AS AND FOR A FIRST CAUSE OF ACTION
FOR ASSAULT AND BATTERY ON BEHALF OF ZIMMIAN TABB**

5. That at all times hereinafter mentioned, plaintiff was and still is a resident of the County of Bronx, City and State of New York.

6. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, was and is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.

7. That the defendant, CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT, and as such is responsible for the practices, policies and customs of the New York City Police Department, as well as the hiring, screening, training, supervising, controlling and disciplining of those persons employed by the New York City Police Department.

8. That on September 23, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER LATASHA CARTER and POLICE OFFICERS "JOHN DOE #1-5, Police Officers as yet unidentified as agents, servants and/or employees.

9. That on September 23, 2016 and at all times hereinafter mentioned and upon

information and belief, at the vicinity of West 231st Street and Broadway, in front of the Western Union, County of New York, in the City and State of New York, the plaintiff, ZIMMIAN TABB, was rightfully, lawfully and peacefully operating a rented white 2015 Dodge Charger.

10. That at the aforesaid date, time and location, the defendants, their agents, servants and employees improperly detained plaintiff ZIMMIAN TABB.

11. That the defendants, wrongfully arrested plaintiff for armed robbery and unlawful possession of a weapon.

12. On or about September 23, 2016, all charges were dropped and dismissed against plaintiff.

13. Defendants POLICE OFFICER CARTER and POLICE OFFICERS "JOHN DOE #1-5, handcuffed and arrested Plaintiff, without probable cause and/or a warrant.

14. Plaintiff was not informed why he was arrested and was transported to a Police Command.

15. That the defendants, intentionally caused Plaintiff, to experience a reasonable apprehension that an immediate, harmful and offensive contact would be applied to his person.

16. Plaintiff was in custody, unlawfully detained and falsely imprisoned and was never read his Miranda rights.

17. The entire case was eventually totally dismissed.

18. That on September 23, 2016, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

19. By reason of the foregoing, the plaintiff, ZIMMIAN TABB, sustained damages in an amount exceeding jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
NEGLIGENCE ON BEHALF OF ZIMMIAN TABB**

20. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "19" inclusive with the same force and effect as if more fully set forth at length herein.

21. The defendants herein, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, including but not limited to Defendants POLICE OFFICER CARTER and POLICE OFFICERS "JOHN DOE #1-5, were negligent, reckless and careless in assaulting, battering and in violating the civil rights of the plaintiff, ZIMMIAN TABB.

22. As a result of said negligence, the plaintiff, ZIMMIAN TABB, became sick, sore, lame and disable, received severe and serious injuries in and about diverse parts of the person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

23. By reason of the foregoing, the plaintiff, ZIMMIAN TABB, sustained damages in an amount exceeding jurisdictional limits of all the lower Courts.

24. That by reason of the foregoing, the plaintiff was caused to be falsely arrested and illegally deprived of his liberty and civil rights; was caused to suffer imprisonment and confinement; was caused to be assaulted and battered by the defendant, THE CITY OF NEW YORK, its agents, servants and/or employees, thereby sustaining conscious pain and suffering, severe, serious and permanent personal injuries; suffered great shock to his nervous system; incurred medical expenses; incurred legal expenses; and is thereby damaged in a sum of money exceeding the jurisdiction of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT HIRING
AND NEGLIGENT RETENTION ON BEHALF OF ZIMMIAN TABB**

25. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "24" inclusive with the same force and effect as if more fully set forth at length herein.

26. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants or employees acted negligently, carelessly and recklessly in hiring and/or retaining the individually named defendants in that said individual defendants were or should have been known to be employees who abused and misused their position, who gave false information, or who acted intentionally and/or recklessly toward the public.

27. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants or employees and were negligent in the hiring, training and retention of the defendants, Defendants POLICE OFFICER CARTER and POLICE OFFICERS "JOHN DOE #1-5, who assaulted, battered and violated the civil rights of the plaintiff, ZIMMIAN TABB.

28. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, Defendants POLICE OFFICER CARTER and POLICE OFFICERS "JOHN DOE #1-5, and continued to employ them and allowed them to be in contact with the public at large.

29. By reason of the foregoing, the plaintiff, ZIMMIAN TABB, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF ZIMMIAN TABB**

30. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "29" inclusive with the same force and effect as if more fully set forth at length herein.

31. That at all time hereinafter mentioned and upon information and belief the defendants, Defendants POLICE OFFICER CARTER and POLICE OFFICERS "JOHN DOE #1-5, were working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they arrested and confined the plaintiff, ZIMMIAN TABB.

32. That at all time hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

33. At no time did plaintiff commit any act or offense for which an arrest may be lawfully made, nor was plaintiff apprised of the criminal charges for which he was handcuffed, arrested and detained for more than 20 days.

34. The false criminal charges, false arrest and wrongful imprisonment were without any legitimate cause or justification, were intentional, malicious, reckless and in bad faith.

35. That as a result of the aforesaid false arrest and confinement, plaintiff, ZIMMIAN TABB, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

36. By reason of the foregoing, the plaintiff, ZIMMIAN TABB, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
FALSE IMPRISONMENT ON BEHALF OF ZIMMIAN TABB**

37. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "36" inclusive with the same force and effect as if more fully set forth at length herein.

38. That at all time hereinafter mentioned and upon information and belief, the defendants, Defendants POLICE OFFICER CARTER and POLICE OFFICERS "JOHN DOE #1-5, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff, ZIMMIAN TABB, inside his place of residence.

39. That defendants, Defendants POLICE OFFICER CARTER and POLICE OFFICERS "JOHN DOE #1-5, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

40. By reason of the foregoing, the plaintiff, ZIMMIAN TABB, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR INTENTIONAL AND
NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS
ON BEHALF OF ZIMMIAN TABB**

41. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "40" inclusive with the same force and effect as if more fully set forth at length herein.

42. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to Defendants POLICE OFFICER CARTER

and POLICE OFFICERS "JOHN DOE #1-5, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

43. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, ZIMMIAN TABB.

44. That as a result of said intentional and negligent acts, the plaintiff, ZIMMIAN TABB, became sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

45. By reason of the foregoing, the plaintiff, ZIMMIAN TABB, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS ON BEHALF OF ZIMMIAN TABB**

46. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "45" inclusive with the same force and effect as if more fully set forth at length herein.

47. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT including but not limited to Defendants POLICE OFFICER CARTER and POLICE OFFICERS "JOHN DOE #1-5, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

48. Said actions exceeded all reasonable bound of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, ZIMMIAN TABB.

49. That as a result of said intentional and negligent acts, the plaintiff, ZIMMIAN TABB, became sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

50. By reason of the foregoing, the plaintiff, ZIMMIAN TABB, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
CIVIL RIGHTS VIOLATION ON BEHALF OF ZIMMIAN TABB**

51. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "50" inclusive with the same force and effect as if more fully set forth at length herein.

52. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT including but not limited to Defendants POLICE OFFICER CARTER and POLICE OFFICERS "JOHN DOE #1-5, were acting under the color of law and within the scope of their authority, assaulted, battered, falsely arrested and falsely imprisoned the plaintiff, ZIMMIAN TABB, for more than 20 days with false criminal charge, fear, threats, intimidation, in violation of 42 U.S.C.A. Section 1983 as well as other applicable and federal laws.

53. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

54. That the assault, battery, false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable and federal laws.

55. That the deprivation by the defendants of plaintiff's civil right was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to Defendants POLICE OFFICER CARTER and POLICE OFFICERS "JOHN DOE #1-5, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK.

56. That the defendants had deprived the plaintiff by their actions of his civil rights a guaranteed by statute.

57. That the assault, battery, false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable and federal laws.

58. That the deprivation by the defendants of the plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to Defendants POLICE OFFICER CARTER and POLICE OFFICERS "JOHN DOE #1-5, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK.

59. That the defendants' actions were not privileged or immune.

60. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to JOHN DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

61. By reason of the foregoing, the plaintiff, ZIMMIAN TABB, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF ZIMMIAN TABB**

62. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "61" inclusive with the same force and effect as if more fully set forth at length herein.

63. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

64. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to Defendants POLICE OFFICER CARTER and POLICE OFFICERS "JOHN DOE #1-5, herein-above alleged.

65. By reason of the foregoing, the plaintiff, ZIMMIAN TABB, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

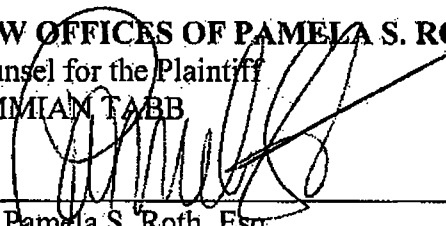
WHEREFORE, plaintiff, ZIMMIAN TABB, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the First Cause of action; plaintiff, ZIMMIAN TABB, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Second

Cause of action; plaintiff, ZIMMIAN TABB, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Third Cause of action; plaintiff, ZIMMIAN TABB, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Fourth Cause of action; plaintiff, ZIMMIAN TABB, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Fifth Cause of action; plaintiff, ZIMMIAN TABB, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Sixth Cause of action; plaintiff, ZIMMIAN TABB, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Seventh Cause of action; plaintiff, ZIMMIAN TABB, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Eighth Cause of action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
August 23, 2019

Respectfully submitted,

LAW OFFICES OF PAMELA S. ROTH, ESQ., P.C.
Counsel for the Plaintiff
ZIMMIAN TABB



By: Pamela S. Roth, Esq.
2747 Coney Island Avenue
Brooklyn, New York 11235
(888) 466-4884

ATTORNEY VERIFICATION

I, the undersigned, **PAMELA S. ROTH**, an attorney duly admitted to practice in the Court of the State of New York, states:

That I am a member of **THE LAW OFFICES OF PAMELA S. ROTH, ESQ., P.C.**, attorneys of record for Plaintiff in the within action. I have read the foregoing *Summons and Verified Complaint* and know the contents thereof; the same is true to my own knowledge except as to those matters therein alleged to be on information and belief and as to those matters, I believe them to be true.

The reason this Verification is made by me and not by Plaintiff is that the residence of Plaintiff is outside the County wherein your deponent maintains her office.

The grounds of my belief as to all matters not stated upon my own knowledge are information, books, records, data and correspondence contained in deponent's file and conversation had with the plaintiff herein.

I affirm that the foregoing statements are true under the penalty of perjury.

Dated: August 23, 2019

 /s/ Pamela S. Roth

PAMELA S. ROTH

CERTIFICATION

STATE OF NEW YORK)

) ss.:

COUNTY OF NEW YORK)

PAMELA S. ROTH, an attorney duly admitted to practice in the Court of the State of New York, states:

That I am a member of **THE LAW OFFICES OF PAMELA S. ROTH, ESQ., P.C.**, attorneys of record for Plaintiff in the within action. I hereby certify, pursuant to 22 NYCRR 130-1.1(a) and after performing an inquiry reasonable under the circumstances, that the within *Summons and Verified Complaint* and its respective contentions, are not frivolous as set forth in and defined by 22 NYCRR 130-1.1(c).

Dated: Brooklyn, New York
August 23, 2019

_____/s/ Pamela S. Roth_____

PAMELA S. ROTH

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.

ZIMMIAN TABB,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
LATASHA CARTER and POLICE OFFICERS
"JOHN DOE #1-5,

Defendants,

SUMMONS AND VERIFIED COMPLAINT

Attorney for Plaintiff
LAW OFFICE OF PAMELA S. ROTH, ESQ. P.C.
2747 Coney Island Avenue
Brooklyn, New York 11235
Telephone: 888-466-4884
Facsimile: 212-253-4220

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous

Dated: Brooklyn, New York
September 11, 2019

/s/ Pamela S. Roth

Signature.....
Print Signer's Name: **Pamela S. Roth**

Service of a copy of the within
Dated:

is hereby admitted.

.....
Attorney(s) for